

LAW AND MOTION TENTATIVE RULINGS

DATE: AUGUST 18, 2026 TIME: 8:30 A.M.

Counsel should appear to set a final hearing on the question of whether the proposed class action settlement, class counsel's fees and expenses, the class representative's enhancement award, and the administrator's fees and costs should be finally approved as fair, reasonable and adequate as to the members of the settlement class, and to correct the language in paragraph 11 of the proposed order.

No. 25CV00973

COSTA v. GENERAL MOTORS, LLC

PLAINTIFF'S MOTION TO STAY PROCEEDINGS

The motion for a stay is denied.

I. BACKGROUND AND MOTION

Plaintiff filed a complaint against General Motors, LLC ("GM") relating to his purchase of a vehicle. Plaintiff maintains that he purchased the Chevy Colorado at issue on May 10 2017, and filed the complaint on March 27, 2025. GM filed a series of demurrers in response to the complaint, the first amended complaint and the second amended complaint. The Court sustained without leave to amend the first, second, and third causes of action in the first amended complaint (Song Beverly express warranty claims). It permitted leave to amend for the implied warranty claim, and thereafter on February 2, 2026, plaintiff filed his second amended complaint ("SAC") with two causes of action: implied warranty and fraudulent concealment. GM filed a demurrer to the SAC, attacking the implied warranty claim as barred by the statute of limitations. This Court agreed, finding that the four-year statute expired nearly four years before plaintiff filed his complaint. After this last demurrer, there remains one cause of action: fraudulent inducement – concealment.

There is a pending motion for summary judgment, filed by GM, to be heard on September 15, 2026. Trial call is set for October 8, 2026.

Plaintiff seeks a stay of these proceedings, pending the Second District Court of Appeal's resolution of *Price v. General Motors* (B353231), "pursuant to the Court's 'inherent power to stay proceedings in the interest of justice and to promote judicial efficiency' [Citation.]" (Mtn. at p. 3.) Plaintiff asserts the *Price* appeal will solve a disputed area of the new law: "whether a manufacturer's post-filing election into the Song-Beverly Act's new procedural regime can retroactively time-bar a complaint that was already on file when the new statutes of repose and limitations took effect." (Decl. of Lister at ¶ 9.)

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GM opposes, arguing that the motion is moot since the only active cause action remaining is fraudulent inducement-concealment, which is not affected by any decision in *Price*; that the motion does not comply with the California Rules of Court, rule 3.1306; and that plaintiff's motion fails to meet the burden of establishing that the balance of equities favors a stay. GM provides a declaration from its counsel that states that plaintiff's law firm initiated 958 Song-Beverly actions between January 1, 2025 and May 15, 2026. He estimates that approximately 203 cases implicated either the statute of repose, statute of limitations, or both under the new time limits of Code of Civil Procedure section 871.21. (Decl. of Hightower at ¶¶ 3, 4.) "Since January 1, 2025, Defendant GM has devoted significant time, effort, and resources to exercise every available tool to meet the statutory timelines of the new Song-Beverly amendments in the matters SLP has initiated. A stay of those proceedings would prejudice GM." (Decl. of Hightower at ¶ 10.)

II. LEGAL STANDARDS

Plaintiff moves for a stay pending a decision in the Second District Court of Appeals involving a different case but related to this Court's interpretation of the new statute of limitations and repose which now applies in Song-Beverly cases. The Court does not find that plaintiff has made a sufficient showing that staying this action would be in the interests of justice or promote judicial efficiency. "[T]he suppliant for a stay must make out a clear case of hardship or inequity in being required to go forward, if there is even a fair possibility that the stay for which he prays will work damage to some one else. Only in rare circumstances will a litigant in one cause be compelled to stand aside while a litigant in another settles the rule of law that will define the rights of both." (*Landis v. N. Am. Co.* (1936) 299 U.S. 248, 255.) This Court made its rulings on GM's demurrers and does not find that staying this action pending the eventual – but potentially long-delayed – decision in the *Price* case would promote judicial efficiency.

No. 24CV03485

BOSWELL-JEUNG v. FCA, US, LLC

**DEFENDANTS' MOTION FOR TERMINATING AND/OR EVIDENTIARY
SANCTIONS AND MONETARY SANCTIONS**

The motion for terminating and evidentiary sanctions is denied. The motion for monetary sanctions is granted.